

23CHCV03218 23CHCV03218

County: los-angeles

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Case Number: 23CHCV03218 Hearing Date: July 21, 2026 Dept: F47

Dept. F47

Date: 7/21/26

TRIAL DATE: 9/21/26

Case #23CHCV03218

2 MOTIONS TO

QUASH

Motions filed on 6/3/26.

MOVING PARTY: Defendant Volkswagen Group of America, Inc.

RESPONDING PARTY: Plaintiff Wendy Hernandez

NOTICE: ok

RELIEF REQUESTED:

(1)

An order quashing Plaintiff's Civil Subpoena

Duces Tecum to non-party Galpin Volkswagen, LLC's Custodian of Records and Person Most Qualified for Personal Appearance and Production of Documents, Electronically Stored Information, and Things at Trial or Hearing; and

(2)

An order quashing Plaintiff's Notice to

Defendant to Produce Party Affiliated Witness Defendant's Person Most Knowledgeable at Trial Pursuant to CCP 1987.

RULING: The motions are granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Wendy Hernandez's (Plaintiff) lease of a 2021 Volkswagen Atlas (the Vehicle) on 9/18/21. Defendant Volkswagen Group of America, Inc. (Defendant) warranted the Vehicle.

Plaintiff alleges that the Vehicle was delivered to her with defects and nonconformities to warranty and developed other serious defects and nonconformities to warranty including, but not limited to, engine, electrical, emission, structural, and suspension system defects. Plaintiff contends that she presented the Vehicle to Defendant's authorized repair facility(ies) for warranty repairs on multiple occasions. Plaintiff claims that none of the repairs performed by Defendant's authorized repair facility(ies) permanently repaired the defects.

Plaintiff contends that the issuance of Technical Service Bulletins (TSBs) evidences the fact that Defendant had knowledge of the defects with the Vehicle. Plaintiff contends that Defendant has not adequately compensated her for the Vehicle which was never fully repaired within a reasonable number of attempts.

On 10/24/23, Plaintiff filed this action against Defendant for: (1) Violation of Song-Beverly Act – Breach of Express Warranty, (2) Violation of Song-Beverly Act – Breach of Implied Warranty and (3) Violation of Song-Beverly Act – Civil Code 1793.2. On 11/21/23, Defendant answered the complaint.

On 5/27/26, when trial was set for 6/15/26, Plaintiff electronically served Defendant's counsel with: (1) a Civil Subpoena Duces Tecum as to non-party Galpin Volkswagen, LLC's (Galpin) Custodian of Records and Person Most Qualified for Appearance and Production of Document, Electronically Stored Information, and Things at Trial; and (2) a Notice to Appear demanding Defendant produce its unidentified Person Most Knowledgeable at trial with respect to 34 matters of examination, and demanding that the witness produce documents responsive to 16 categories of documents. (See Roberson Decls., Exs.A).

On 6/3/26, Defendant filed and served the instant motions seeking:

(1) An order quashing Plaintiff's Civil Subpoena Duces Tecum to non-party Galpin Volkswagen, LLC's Custodian of Records and Person Most Qualified for Personal Appearance and Production of Documents, Electronically Stored Information, and Things at Trial or Hearing; and

(2) An order quashing Plaintiff's Notice to Defendant to Produce Party Affiliated Witness Defendant's Person Most Knowledgeable at Trial Pursuant to CCP 1987.

On 6/5/26, the Court advanced the 6/15/26 trial date and continued it to 9/21/26. (See 6/5/26 Minute Order). The Court also advanced the 7/16/26 hearing on the motion to quash subpoena and continued the hearing to 7/21/26 to be heard with the motion to quash deposition notice. Id. The Court also ordered that discovery cut-off deadlines are to be governed by the new trial date as to pending expert witnesses only. Id.

Plaintiff has filed a combined opposition to the two separate motions to quash.

ANALYSIS

Motion to Quash As To Galpin Volkswagen, LLC

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial at issue therein, or at the taking of a deposition, the court, upon motion reasonably made by a party, may make an order quashing the subpoena entirely. CCP 1987.1(a), (b).

Under appropriate circumstances, a "Person Most Qualified" may be designated to appear at a deposition pursuant to CCP 2025.230, which is the statute cited in the attachment to Plaintiff's subpoena. (See Roberson Decl., Ex.A). However, there is no authorized mechanism to demand the appearance of such an unidentified individual at trial.

Plaintiff has also failed to establish that Galpin's Custodian of Records has any relevant information. Plaintiff's counsel's declaration which accompanied the subpoena states that "[a]ll documents and information below are within Defendant's custody, possession, and control due to the scope of the deponent's employment with Defendant." (See Roberson Decl. ¶3, Ex.A). However, Galpin is not a defendant to this action. Even if all of the documents sought are within Defendant's custody, possession and control, such does not amount to good cause to compel production of documents at trial from non-party Galpin's custodian of records.

Additionally, the document requests in the subpoena are not sufficiently supported by an affidavit or declaration as required by CCP 1985. Pursuant to CCP 1985(b), the subpoena duces tecum must include an affidavit "showing good cause for the production of the matters and things described in the subpoena, specifying the exact matters or things desired to be produced, setting forth in full detail the materiality thereof to the issues involved in the case, and stating that the witness has the desired matters or things in his or her possession or under his or her control." Plaintiff's counsel's declaration fails to meet the foregoing requirements. While a lawyer may execute such a declaration upon information and belief, the sources of the information in the declaration must be stated. See Grannis (1971) 19 CA3d 551, 564. Here, the supporting declaration does not show good cause to the materiality of matters sought and is vague and overbroad as to the requested categories of documents. The declaration is conclusory and fails to identify the source of any information which is insufficient. See McClatchy (1945) 26 C2d 386, 398.

The opposition confirms that Plaintiff is confusing discovery with compelling witnesses' appearances at trial. The opposition argues that "[t]he Motions to Quash are not a legitimate effort to protect against improper discovery; they are another attempt to avoid discovery that Plaintiff is entitled to obtain and that is necessary to prepare this case for trial." (See Opposition, p.2:2-4). Additionally, the opposition cites authority regarding a party's right to conduct discovery. (See Opposition, p.4:8-p.5:11).

The opposition also notes that the depositions of Galpin's PMQ and Defendant's PMK were not completed 2024 and seems to imply that Plaintiff is

entitled to complete these depositions at trial. (See Opposition, p.2:11-20, p.3:4-26). If Plaintiff wanted to complete these depositions that began in 2024, she should have done so before the discovery cut-off. Plaintiff cannot cure her failure to complete the depositions by serving a subpoena and/or a notice to appear at trial for these unidentified witnesses.

Plaintiff has also failed to establish that personally serving an attorney named Leila Qutami with the subpoena satisfies the notice requirements when serving a subpoena to appear at trial and produce documents on a non-party (e.g. Galpin's PMQ). Plaintiff has failed to establish that this attorney is authorized to accept service for the unidentified PMQ.

Motion to Quash As to Defendant

Pursuant to CCP 1987(b), a party may move to quash a Notice to Appear/Produce at Trial. With regard to Defendant, Plaintiff improperly seeks to have Defendant produce an unidentified PMK at trial. (Roberson Decl., Ex.A). As noted above, it appears that Plaintiff served the Notice to Appear/Produce at Trial as an improper attempt to complete the deposition of Defendant's PMK.

Additionally, the requests for production within the notice also fail because the notice does not state "the exact materials or things desired" as required. See CCP 1987(c).

CONCLUSION

The motions are granted.